



10 CFR 50.73

NMP1L3291
June 24, 2019

U. S. Nuclear Regulatory Commission
ATTN: Document Control Desk
Washington, DC 20555-0001

Nine Mile Point Nuclear Station, Unit 1
Renewed Facility Operating License No. DPR-63
Docket No. 50-220

Subject: NMP1 Licensee Event Report 2019-002, Condition Prohibited by Technical Specifications due to Vacuum Breaker not Locked Closed

In accordance with the reporting requirements contained in 10 CFR 50.73(a)(2)(i)(B), please find enclosed NMP1 Licensee Event Report (LER) 2019-002, Condition Prohibited by Technical Specifications due to Vacuum Breaker not Locked Closed.

There are no regulatory commitments contained in this letter.

Should you have any questions regarding the information in this submittal, please contact Brandon Shultz, Site Regulatory Assurance Manager, at (315) 349-7012.

Respectfully,

A handwritten signature in black ink, appearing to read "Robert E. Kreider Jr.", written in a cursive style.

Robert E. Kreider Jr.
Plant Manager, Nine Mile Point Nuclear Station
Exelon Generation Company, LLC

REK/KJK

Enclosure: NMP1 Licensee Event Report 2019-002, Condition Prohibited by Technical Specifications due to Vacuum Breaker not Locked Closed

cc: NRC Regional Administrator, Region I
NRC Resident Inspector
NRC Project Manager

TE22
NRR

Enclosure

NMP1 Licensee Event 2019-002,
Condition Prohibited by Technical Specifications due to Vacuum Breaker not Locked Closed

Nine Mile Point Nuclear Station, Unit 1

Renewed Facility Operating License No. DPR-63

**LICENSEE EVENT REPORT (LER)**

(See Page 2 for required number of digits/characters for each block)

(See NUREG-1022, R.3 for instruction and guidance for completing this form
<http://www.nrc.gov/reading-rm/doc-collections/nuregs/staff/sr1022/r3/>)

Estimated burden per response to comply with this mandatory collection request: 80 hours. Reported lessons learned are incorporated into the licensing process and fed back to industry. Send comments regarding burden estimate to the Information Services Branch (T-2 F43), U.S. Nuclear Regulatory Commission, Washington, DC 20555-0001, or by e-mail to Infocollects.Resource@nrc.gov, and to the Desk Officer, Office of Information and Regulatory Affairs, NEOB-10202, (3150-0104), Office of Management and Budget, Washington, DC 20503. If a means used to impose an information collection does not display a currently valid OMB control number, the NRC may not conduct or sponsor, and a person is not required to respond to, the information collection.

1. FACILITY NAME

Nine Mile Point Unit 1

2. DOCKET NUMBER

05000220

3. PAGE

1 OF 4

4. TITLE

Condition Prohibited by Technical Specifications due to Vacuum Breaker not Locked Closed

5. EVENT DATE			6. LER NUMBER			7. REPORT DATE			8. OTHER FACILITIES INVOLVED	
MONTH	DAY	YEAR	YEAR	SEQUENTIAL NUMBER	REV NO.	MONTH	DAY	YEAR	FACILITY NAME	DOCKET NUMBER
04	25	2019	2019	002	00	06	24	2019	N/A	N/A
9. OPERATING MODE			11. THIS REPORT IS SUBMITTED PURSUANT TO THE REQUIREMENTS OF 10 CFR §: (Check all that apply)							
N			☐ 20.2201(b)	☐ 20.2203(a)(3)(i)		☐ 50.73(a)(2)(ii)(A)		☐ 50.73(a)(2)(viii)(A)		
			☐ 20.2201(d)	☐ 20.2203(a)(3)(ii)		☐ 50.73(a)(2)(ii)(B)		☐ 50.73(a)(2)(viii)(B)		
			☐ 20.2203(a)(1)	☐ 20.2203(a)(4)		☐ 50.73(a)(2)(iii)		☐ 50.73(a)(2)(ix)(A)		
			☐ 20.2203(a)(2)(i)	☐ 50.36(c)(1)(i)(A)		☐ 50.73(a)(2)(iv)(A)		☐ 50.73(a)(2)(x)		
10. POWER LEVEL 000			☐ 20.2203(a)(2)(ii)	☐ 50.36(c)(1)(ii)(A)		☐ 50.73(a)(2)(v)(A)		☐ 73.71(a)(4)		
			☐ 20.2203(a)(2)(iii)	☐ 50.36(c)(2)		☐ 50.73(a)(2)(v)(B)		☐ 73.71(a)(5)		
			☐ 20.2203(a)(2)(iv)	☐ 50.46(a)(3)(ii)		☐ 50.73(a)(2)(v)(C)		☐ 73.77(a)(1)		
			☐ 20.2203(a)(2)(v)	☐ 50.73(a)(2)(i)(A)		☐ 50.73(a)(2)(v)(D)		☐ 73.77(a)(2)(i)		
			☐ 20.2203(a)(2)(vi)	☒ 50.73(a)(2)(i)(B)		☐ 50.73(a)(2)(vii)		☐ 73.77(a)(2)(ii)		
			☐ 50.73(a)(2)(i)(C)		☐ OTHER		Specify in Abstract below or in NRC Form 366A			

12. LICENSEE CONTACT FOR THIS LER

LICENSEE CONTACT

Brandon Shultz, Site Regulatory Assurance Manager

TELEPHONE NUMBER (Include Area Code)

(315) 349-7012

13. COMPLETE ONE LINE FOR EACH COMPONENT FAILURE DESCRIBED IN THIS REPORT

CAUSE	SYSTEM	COMPONENT	MANUFACTURER	REPORTABLE TO EPIX	CAUSE	SYSTEM	COMPONENT	MANUFACTURER	REPORTABLE TO EPIX
A	BF	PCV	GE	Y	N/A	N/A	N/A	N/A	N/A

14. SUPPLEMENTAL REPORT EXPECTED☐ YES (If yes, complete 15. EXPECTED SUBMISSION DATE) ☒ NO**15. EXPECTED SUBMISSION DATE**

MONTH	DAY	YEAR

ABSTRACT (Limit to 1400 spaces, i.e., approximately 15 single-spaced typewritten lines)

On April 25, 2019, Nine Mile Point Unit 1 discovered that one vacuum breaker was not locked closed, as required by Technical Specification 3.3.6.f.(2). The mode of applicability was entered three times on previous startups. This event is reportable under 10 CFR 50.73(a)(2)(i)(B) as a condition prohibited by Technical Specifications.

The cause of the event is Operations personnel have not consistently implemented the Degraded Equipment Log (DEL)/Equipment Status Log (ESL) to track operability concerns of systems and components. Action to prevent recurrence is reinforce implementation of the process to institutionalize use of the DEL/ESL into day to day operations.

The event described in this LER is documented in the plant's corrective action program.

**LICENSEE EVENT REPORT (LER)
CONTINUATION SHEET**

(See NUREG-1022, R.3 for instruction and guidance for completing this form
<http://www.nrc.gov/reading-rm/doc-collections/nuregs/staff/sr1022/r3/>)

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1. FACILITY NAME	2. DOCKET NUMBER	3. LER NUMBER		
		YEAR	SEQUENTIAL NUMBER	REV NO.
Nine Mile Point Unit 1	05000220	2019	- 002	- 00

NARRATIVE**I. DESCRIPTION OF EVENT****A. PRE-EVENT PLANT CONDITIONS:**

Prior to the event, Nine Mile Point Unit 1 (NMP1) was in cold shutdown. Reactor coolant system temperature was less than 212 degrees Fahrenheit (F) and pressure was atmospheric.

B. EVENT:

On April 2, 2019, during a planned refueling outage, a primary containment vacuum breaker (IV-68-08) failed post maintenance operability testing due to not indicating full open. The valve failure occurred while the station was in refuel with primary containment integrity not required; therefore, there was no Limiting Condition for Operability (LCO) entry made for TS 3.3.6.f.(2). The inoperable vacuum breaker was not identified during the station's pre-startup reviews for primary containment operability. As a result, three plant startups were performed with the vacuum breaker closed, but not locked, as required by the applicable Technical Specification Action Statement. The condition was discovered on April 25, 2019, when the station identified the inoperable vacuum breaker while preparing for startup from the refuel outage. The inoperable primary containment vacuum breaker was locked closed prior to plant startup on April 26, 2019. The vacuum breaker was repaired and declared Operable on April 28, 2019.

Nine Mile Point Unit 2 (NMP2) was unaffected by the event at NMP1.

This event has been entered into the plant's corrective action program as IR 04243630.

C. INOPERABLE STRUCTURES, COMPONENTS, OR SYSTEMS THAT CONTRIBUTED TO THE EVENT:

No other systems, structures, or components contributed to this event.

D. DATES AND APPROXIMATE TIMES OF MAJOR OCCURRENCES AND OPERATOR ACTIONS:

The dates, times, and major occurrences and operator actions for this event are as follows.

April 2, 2019 – Vacuum breaker failed post maintenance testing, IR written, work assigned to Fix-it-Now (FIN) team.

April 12, 2019 at 13:30 – Entered mode of applicability when Primary Containment Integrity is required. (Reactor Criticality established, Reactor Coolant Temp = 148 degrees F)

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NARRATIVE

April 12, 2019 at 16:32 – Exited mode of applicability when Primary Containment Integrity no longer required. (Reactor declared Sub-Critical, Reactor Coolant Temp = 211 degrees F)

April 12, 2019 at 17:54 – Entered mode of applicability when Primary Containment Integrity is required. (Reactor Criticality established, Reactor Coolant Temp = 205 degrees F)

April 14, 2019 at 16:24 – Exited mode of applicability when Primary Containment Integrity no longer required. (Reactor Coolant Temp = 214 degrees F)

April 14, 2019 at 22:38 - Entered mode of applicability when Primary Containment Integrity is required. (Reactor Criticality established, Reactor Coolant Temp = 204 degrees F)

April 16, 2019 at 13:14 – Exited mode of applicability when Primary Containment Integrity no longer required. (Reactor Coolant Temp = 214 degrees F)

April 25, 2019 – Discovered condition

April 25, 2019 at 19:40 – Vacuum Breaker locked closed to comply with TS 3.3.6.f.(2)

April 26, 2019 at 10:22 – Entered mode of applicability when Primary Containment Integrity is required. (Reactor Criticality established, Reactor Coolant Temp = 148 degrees F).

April 28, 2019 at 00:36 - Vacuum breaker repaired and declared Operable.

April 28, 2019 at 02:05 – Vacuum Breaker lock removed, TS LCO 3.3.6.f.(2) Exited.

E. METHOD OF DISCOVERY:

This event was discovered by station personnel when preparing for plant startup.

F. SAFETY SYSTEM RESPONSES:

None. No operational conditions occurred requiring the response of safety systems.

II. CAUSE OF EVENT:

The cause of the event is Operations personnel have not consistently implemented the Degraded Equipment Log (DEL)/Equipment Status Log (ESL) to track operability concerns of systems and components.

III. ANALYSIS OF THE EVENT:

This event is reportable in accordance with 10 CFR 50.73 (a)(2)(i)(B), as an operation or condition which was prohibited by the plant's Technical Specifications.

The NMP1 TS 3.3.6.f.(2) requires an inoperable Pressure Suppression Chamber to Reactor Building Vacuum Breaker to be immediately locked closed. NMP1 design includes 3 Pressure Suppression Chamber – Reactor Building Vacuum Breakers. One vacuum breaker is allowed

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Nine Mile Point Unit 1	05000220	2019	- 002	- 00

NARRATIVE

to be locked closed, per TS 3.3.6.f.(2). Two vacuum breakers are required to perform the function of relieving pressure. Two vacuum breakers were operable when required.

Based on the above discussion, it is concluded that the safety significance of this event is low and the event did not pose a threat to the health and safety of the public or plant personnel.

This event does not affect the NRC Regulatory Oversight Process Indicators.

IV. CORRECTIVE ACTIONS:**A. ACTION TAKEN TO RETURN AFFECTED SYSTEMS TO PRE-EVENT NORMAL STATUS:**

Vacuum Breaker, IV-68-08, was repaired.

B. ACTION TAKEN OR PLANNED TO PREVENT RECURRENCE:

Action to prevent recurrence is reinforce implementation of the process to institutionalize use of the DEL/ESL into day to day operations.

V. ADDITIONAL INFORMATION:**A. FAILED COMPONENTS:**

Vacuum Breaker, IV-68-08.

B. PREVIOUS LERs ON SIMILAR EVENTS:

None

C. THE ENERGY INDUSTRY IDENTIFICATION SYSTEM (EII) COMPONENT FUNCTION IDENTIFIER AND SYSTEM NAME OF EACH COMPONENT OR SYSTEM REFERRED TO IN THIS LER:

<u>COMPONENT</u>	<u>IEEE 803 FUNCTION IDENTIFIER</u>	<u>IEEE 805 SYSTEM IDENTIFICATION</u>
Vacuum Breaker	PCV	BF
Primary Containment	N/A	JB
Containment Vacuum Relief System	N/A	BF
Reactor Building	N/A	NG